



DEPARTMENT OF PUBLIC SAFETY

Colorado Bureau of Investigation

MISSING SENIOR CITIZEN AND PERSON WITH DEVELOPMENTAL DISABILITIES ALERT PROGRAM

8 CCR 1507-26

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

AUTHORITY TO ADOPT RULES AND REGULATIONS

The Colorado Department of Public Safety Executive Director is mandated to promulgate rules and regulations regarding the MISSING SENIOR CITIZEN AND PERSON WITH DEVELOPMENTAL DISABILITIES (hereinafter jointly referred to as "missing person") ALERT PROGRAM pursuant to 24-33.5-415.8

DEFINITIONS

The definitions provided in section 24-33.5-415.8 (2) shall apply to these rules and regulations. The following definitions shall also apply.

"Verified impaired mental condition" - Signed statement from a family member, close friend, caregiver, doctor or medical facility that verifies the missing senior citizen has an impaired mental condition.

"Verified Developmental Disabilities" – A signed statement from a family member, close friend, caregiver, doctor or medical facility that verifies the missing person has a disability(ies) that is manifested before the person reaches twenty-two years of age, which constitutes a substantial disability to the affected individual, and is attributable to mental retardation or related conditions which include cerebral palsy, epilepsy, autism, or other neurological conditions when such conditions result in impairment of general intellectual functioning or adaptive behavior similar to that of a person with mental retardation. The federal definition of "developmental disability" found in 42 U.S.C. sec. 15001 et seq. shall not apply.

"Senior Citizen/ Person with Developmental Disabilities Alert Broadcast" – Means a public broadcast notification containing information regarding the missing person, circumstances surrounding the disappearance, mode of transportation and/or direction of travel, and any additional information pertaining to the investigation that would lead to the safe return of the missing person.

APPLICABILITY

These rules and regulations shall apply to the Colorado Bureau of Investigation and statewide Law Enforcement.

RULES / REGULATIONS / PROCEDURES

CBI-SCAP/DDAP 1

- A local law enforcement agency, operating under their individual policy and procedures, involving an investigation, and upon confirmation of a report of a missing senior citizen or person with developmental disabilities, may notify the Colorado Bureau of Investigation and request that the information be conveyed to the bureau for a Missing Senior Citizen / Person with Developmental Disabilities Alert Broadcast. The Colorado Bureau of Investigation will provide a designated

number to be utilized for contacting Colorado Bureau of Investigation Personnel assigned to assist local law enforcement agencies with the Senior Citizen / Person with Developmental Disabilities Alert Broadcast. The number will be operational 24 hours a day, 7 days a week.

CBI-SCAP/DDAP 2

- The Colorado Bureau of Investigation will verify the accuracy of the information based on personal contact with a representative from the law enforcement agency. The verification of information provided by the law enforcement agency will include but is not limited to:
 - 1) Confirming the identity of the Law Enforcement Agency and the reporting law enforcement official.
 - 2) Confirmation that law enforcement has received a signed statement from the family member; close friend, caregiver, doctor or medical facility that verifies the missing person is a senior citizen with an impaired mental condition or is a person with developmental disabilities.
 - 3) Verify that the information being reported meets the definition of “missing senior citizen” or “missing person with developmental disabilities.” The Colorado Bureau of Investigation will then forward the information on to participating radio stations, television stations, and other media outlets in Colorado.

CBI-SCAP/DDAP 3

- Participating radio stations, television stations, and other media outlets in Colorado may broadcast all appropriate information that may assist in the safe recovery of the missing person, and a statement instructing anyone with information regarding the missing person to contact his or her local law enforcement agency. The alert information may contain but is not limited to:
 - 1) The missing person’s name and identification information to include last known location.
 - 2) Information involving the missing person’s mode of transportation.
 - 3) Brief description of events leading to the disappearance of the missing person.
 - 4) Information directly related to the safety and health of the missing person.

CBI-SCAP/DDAP 4

- Once the request has been approved, the requesting law enforcement agency should fill out the “Missing Senior Citizen Alert” or “Missing Person with Developmental Disabilities” preformatted Teletype by typing INFO SENIOR or INFO DD or INFO DEVELOPMENTAL DISABILITY. This Teletype will notify law enforcement in Colorado that there is an active “Missing Senior Citizen Alert” or “Missing Person with Developmental Disabilities Alert.”

CBI-SCAP5 /DDAP5

- The Alert may be rebroadcast as often as possible, but it is recommended to rebroadcast every 15 minutes the first 2 hours, then every 30 minutes. The update of information may be at the direction of state or local law enforcement and as additional information becomes available or as investigation circumstances change. The cancellation of the broadcast shall be the responsibility of the Colorado Bureau of Investigation. The bureau will notify the participating radio stations, television stations, and other media outlets in Colorado that the missing person has been found or at the end of the broadcasted notification period, which ever comes first. The requesting law

enforcement agency must contact the Colorado Bureau of Investigation Designee to deactivate the activation once the missing person is located or at the end of the determined notification period.

- Once the missing person is located and the Colorado Bureau of Investigation has been notified, the requesting law enforcement agency must cancel the original “Missing Senior Citizen Alert” or “Missing Person with Developmental Disabilities Alert” Teletype that was sent out by their agency.

Editor’s Notes

History

Entire rule eff. 12/30/2007.